

4.

CASE #	CASE NAME	HEARING NAME
CVRI2505185	CAMARILLO VS MATRIX NORTH AMERICAN CONSTRUCTION, INC.	DEMURRER ON 1ST AMENDED COMPLAINT

Tentative Ruling: The Court continues this hearing to provide Defendant an opportunity to comply with Section 430.41(a)(3) of the Code of Civil Procedure. If a code-compliant declaration has not been filed and served at least ten days prior to the continued hearing date, the Court may take the demurrer off calendar.

Before filing a demurrer, the moving party shall meet and confer, at least 5 days before a responsive pleading is due, in person, via telephone, or video conference, with the party who filed the pleading for purposes of seeing if a resolution can be had to the objections raised in the demurrer motion. (Code Civ. Proc., §§430.41, subd. (a), 435.5, subds. (a).) The demurring party must file a declaration stating the means by which the parties met and conferred, or the responding party failed to respond or meet and confer in good faith. (Code Civ. Proc., §430.41, subd. (a)(3).)